

26STCV11744 26STCV11744

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 26STCV11744 Hearing Date: August 3, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV11744

DEREK

SCOTT PAOLI vs ABRAMSON, LEVIN, AND GINDI, L.L.P., et al.

August

3, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' MOTION TO STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT.

RULING:

The Court grants the unopposed
Motion, without leave to amend.

Twenty
days to answer the surviving allegations.

I.

BACKGROUND

On April 10, 2026, DEREK
SCOTT PAOLI (Plaintiff) filed a Complaint against ABRAMSON, LEVIN, AND GINDI,
L.L.P.; W. ZEV ABRAMSON; TZVI SCHWARZBAUM; YAHYA STITH STEWART; and JEDIDIAH
SEGURA (Defendants), listing Causes of Action for:

1.

PROFESSIONAL NEGLIGENCE / LEGAL MALPRACTICE; and

2.

BREACH OF FIDUCIARY DUTY.

Plaintiff alleges that Defendants
provided negligent legal representation of Plaintiff regarding employment law
violations and workers compensation, which deprived Plaintiff of being in a
better position to prosecute matters and to obtain disability benefits.

On June 23, 2026, Defendants
filed the Motion to Strike the reference to disgorgement from the Complaint.

There is no Opposition
filed as to this matter.

II.

LEGAL STANDARD

The grounds for a motion
to strike are that the pleading has irrelevant, false or improper matter, or
has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.)
The grounds for moving to strike must appear on the face of the pleading or by
way of judicial notice. (Ibid., § 437.)

III.

ANALYSIS

Defendants contend that the Complaint fails to support the remedy of disgorgement of attorneys' fees, where it fails to allege Plaintiff's paying attorneys' fees or any egregious conflict of interest.

Disgorgement or forfeiture of attorneys' fees may be a remedy depending on the circumstances. (See, e.g., *Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518, 1536 [disgorgement claim may lie based upon attorneys' breaches or violations if they caused clients damages]; *Mardirossian & Assocs., Inc. v. Ersoff* (2007) 153 Cal.App.4th 257, 278-279 ["In certain circumstances, a violation of the Rules of Professional Conduct may result in a forfeiture of an attorney's right to fees."].)

On page 13, at prayer item number 2 of the Complaint, it states: "For restitution or disgorgement to the extent permitted by law and proven at trial;..."

A judge in a civil case is not "obligated to seek out theories [a party] might have advanced, or to articulate ... that which ... [a party] has left unspoken." (*Mesecher v. County of San Diego* (1992) 9 Cal.App.4th 1677, 1686.) The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (*Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602; *Cabrini Villas Homeowners Assn. v. Haghverdian* (2003) 111 Cal.App.4th 683, 693 [appellate court will not consider any erroneous rulings where an objection could have been made].) To qualify for leave to amend, complainants must set forth applicable law and factual allegations sufficiently stating all required elements of the cause of action. (*Rosen v. St. Joseph Hospital of Orange County* (2011) 193 Cal.App.4th 453, 458.)

There is no Opposition raising any issues for Court consideration.

IV.

CONCLUSION

The Court grants the unopposed
Motion, without leave to amend.